

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

DASHAWN CARTER AND DERRELL
DERBY,

Index No.
Date Purchased:

Plaintiffs,

SUMMONS

- against -

Plaintiffs designate Kings County
as the place of trial.

The basis of the venue is place of
occurrence C.P.L.R §503 as Plaintiffs
reside in Kings County

THE CITY OF NEW YORK, POLICE
OFFICER THOMAS, SHIELD #9859 and
UNIDENTIFIED NEW YORK CITY POLICE
OFFICERS, sued herein in their capacity as
individuals.

Defendants.

To the above named Defendants:

YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance, on the Plaintiffs' Attorneys within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: April 17, 2015
New York, New York

From: / s /
Fred Lichtmacher
The Law Office of Fred Lichtmacher P.C.
Attorney for Plaintiffs
2 Wall Street 10th Floor
New York New York 10005

Defendants' Address:
Zachary Carter
City of New York Corporation Counsel
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DASHAWN CARTER AND DERRELL DERBY

Plaintiffs,

COMPLAINT

-against-

NEW YORK CITY, POLICE OFFICER THOMAS,
SHEILD #9859, and UNIDENTIFIED NEW YORK CITY
POLICE OFFICERS, sued herein in their capacities as
individuals.

Defendant(s).

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The plaintiffs, complaining of the Defendants, by their attorney, The Law Office of Fred Lichtmacher P.C., respectfully shows to this Court and alleges:

Nature of the Action

1 This civil rights action arises from the July 31, 2013 unlawful arrest and excessive force of Dashawn Carter and Derrell Derby. Plaintiffs seek compensatory and punitive damages for violation of their civil rights.

PARTIES

2 The Plaintiff, Dashawn Carter, is an adult African American male resident of the City and State of New York, County of Kings.

3 The Plaintiff, Derrell Derby, is an adult African American male resident of the City and State of New York, County of Kings.

4 Defendant City of New York (NYC) is a Municipal Corporation within New York State.

5 Pursuant to §431 of its Charter, the City of New York has established and maintained the New York City Police Department (NYPD) as a constituent department or agency.

6 At all times relevant, the City of New York employed the Police personnel involved in the incident underlying this lawsuit.

7 Defendant Police Officer Thomas, Shield #9859, was at all times a relevant duly appointed and acting police officer, employed by the NYPD and assigned to the 81st Precinct in New York City and he is liable for directly participating as well as for failing to intervene to prevent the acts described herein and he is sued herein in his individual capacity.

8 Defendants Unidentified New York City Police Officers, were at all times relevant duly appointed and acting police officers, employed by the NYPD and assigned to the 81st Precinct in New York City. They are liable for directly participating in the acts described herein as well as for failing to intervene to prevent the acts described herein and are sued herein in their individual capacity.

9 Upon information and belief, at all times hereinafter mentioned, the Defendant, NYC, its agents, servants and employees operated, maintained and controlled the NYPD, including all the police officers thereof.

10 At all times relevant, Defendants Thomas, and Unidentified New York City Police Officer (herein Individual Defendants), the other Police Officers involved in the incidents underlying this lawsuit were acting as state actors under color of law.

11 Police Officer Thomas and the Unidentified Police Officers were at all times relevant agents, servants and employees acting within the scope of their employment by defendant City of New York.

STATEMENT OF FACTS

PLAINTIFF DASHAWN CARTER

12 On July 31, 2013, near the intersection of Decatur Street and Albany Avenue in Brooklyn, New York at approximately 6:00 PM, the Police Officer Thomas and the Individual Defendants assaulted and falsely arrested Dashawn Carter.

13 Dashawn Carter was leaving the park at Decatur Street between Marcus Garvey Boulevard and Marcus Avenue; as he approached the corner of Decatur Street and Albany Avenue, a marked vehicle pulled up to the corner.

14 After exiting the marked vehicle, the officers spoke to and chased another individual, regarding another matter unrelated to Mr. Carter.

15 While Mr. Carter was in front of his building, the Individual Defendants grabbed Mr. Derby.

16 Defendant Thomas then approached Mr. Carter, and Mr. Carter then raised his hands in the air immediately to show he was not a threat.

17 Mr. Carter was then unlawfully arrested, without probable cause to believe he had committed or was about to commit a crime, he was handcuffed, and he was thrown into a marked vehicle.

18 Defendant Thomas said to Mr. Carter, "I should fuck you up because he got away."

19 Defendant Thomas swung at Mr. Carter several times, while he was immobilized by rear handcuffs and at least one of the punches connected with Mr. Carter's face.

20 There was no cause for the Defendant to use any force on Mr. Carter, who was handcuffed, much less the extreme, gratuitous and unnecessary force he employed against a man in handcuffs and who was offering no resistance.

21 The assault on Mr. Carter was made without any legal justification.

22 Defendant Thomas then drove the marked vehicle, in which Mr. Carter was placed, from the location of the incident to Fulton Street and Marcus Garvey Boulevard, and left him alone in the vehicle for approximately ten minutes and then proceeded to the precinct.

23 When arriving at the precinct, Defendant Thomas told Mr. Carter that he was "lucky".

24 Mr. Carter was released from Brooklyn Central Booking at around 5PM the next day after being arraigned.

25 As a direct result of Defendants' actions, Plaintiff suffered from pain to his face, as well as anxiety, and humiliation.

26 The criminal charges were ultimately resolved via an ACD.

PLAINTIFF DERRELL DERBY

27 During the same incident described supra, on July 31, 2013, near the intersection of Decatur

Street and Albany Avenue in Brooklyn, New York at approximately 6:00 PM, the Individual Defendants assaulted and arrested Derrell Derby.

28 As Mr. Derby walked down to the corner of Decatur Street and Albany Avenue, a marked vehicle pulled up to the corner.

29 Mr. Derby stopped to sit on a stoop approximately fifty (50) feet away from the corner.

30 As Defendant Thomas chased another individual, (the individual and chase referenced in ¶14 above) about 10-12 marked vehicles arrived at the corner.

31 Defendant Thomas returned to the scene, approached Mr. Derby, and grabbed him by the arm.

32 Once Mr. Derby was grabbed by the arm, approximately six (6) more officers grabbed him by the legs and arms.

33 The Individual Defendants forcefully took Mr. Derby to the floor, at which point he tried to protect his face.

34 While on the ground, Mr. Derby felt several officers painfully sitting on and/or placing their weight on his back and legs, causing him injury.

35 Defendant Thomas kneed Mr. Derby on the left side of his face while he was on the ground, causing the right side of his face to hit the pavement.

36 Mr. Derby was handcuffed.

37 Mr. Derby was placed in a marked vehicle and taken to the 81st Precinct.

38 While in Defendants' custody, Mr. Derby requested medical attention for his injuries, but this request was denied.

39 Mr. Derby was brought to Central Booking at 3 am.

40 As a direct result of Defendants' actions, Mr. Derby was scratched and bruised, he suffered from pain and bruising on his face, as well as anxiety, and humiliation.

41 There were criminal charges brought against him which were ultimately dismissed.

42 Mr. Derby went to court about 4 times before the false charges against him resolved.

PLAINTIFFS' FIRST CAUSE OF ACTION PURSUANT TO
42 U.S.C. § 1983 AND THE FOURTH AND FOURTEENTH AMENDMENTS
TO THE UNITED STATES CONSTITUTION
THE USE OF EXCESSIVE AND UNREASONABLE FORCE

43 Plaintiffs repeats the allegations of the previous paragraphs as though fully stated herein.

44 By the actions described above, the Defendant Thomas and the Unidentified Police Officers deprived Plaintiffs of their rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, and the Fourth Amendment as made applicable to the states via the Fourteenth Amendment, including, but not limited to, the right to be free from being subjected to excessive and unreasonable force by the Defendants who gratuitously assaulted them during and after they were handcuffed.

45 The excessive force which the Plaintiffs were subjected to, was effected by Defendants without authority of law and without any reasonable necessity to use any force, much less the excessive and unreasonable force employed both before and after Plaintiffs were in handcuffs, and the force employed was used without legal justification, without Plaintiffs' consent, with malice and with an intent to inflict pain and suffering.

46 Defendants who witnessed the use of excessive force and failed to exercise their affirmative duty to intervene, when there was a reasonable opportunity to do so, are liable to the Plaintiffs along with those officers who directly participated in the use of excessive and unreasonable force.

47 As a direct result of Defendants' actions, Plaintiffs were deprived of rights, privileges and immunities under the Fourth Amendment of the United States Constitution, being more particularly Plaintiffs' right to be free from the use of excessive and unreasonable force.

48 By reason of the unlawful use of excessive and unreasonable force, the Plaintiffs were harmed physically, requiring Plaintiffs to receive medical treatment, they received scratches and bruises to the face and they were subjected to other physical pain, humiliation, embarrassment, and anxiety and they were subjected to various physical and emotional harms.

49 As a consequence thereof, Plaintiffs Dashawn Carter and Derrell Derby has been harmed.

50 By reason of the aforesaid, the plaintiffs have been damaged and they are entitled to compensatory damages in a sum to be determined at trial, punitive damages and attorney's fees pursuant to 42 U.S.C. §1988.

PLAINTIFF'S SECOND CAUSE OF ACTION PURSUANT TO
42 U.S.C. §1983 AND THE FOURTH AND FOURTEENTH AMENDMENTS
TO THE UNITED STATES CONSTITUTION
VIA FALSE ARREST

51 Plaintiffs repeat the allegations of the previous paragraphs as though fully stated herein.

52 By the actions described above, the individual Defendants deprived Plaintiff Carter of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, and the Fourth Amendment as made applicable to the states via the Fourteenth Amendment including, but not limited to, the right to be free from unreasonable searches and seizures and an arrest made without probable cause.

53 The Plaintiff was confined by Defendants; Defendants intended to confine him; he was conscious of their confinement; and the Plaintiff did not consent to his confinement which were not otherwise privileged.

54 As a consequence thereof, Mr. Carter has been harmed.

55 Plaintiff was subjected to deprivations of his liberty, he was searched, seized and he incurred emotional harms, he was prevented from conducting his usual affairs of business and he was otherwise harmed.

56 By reason of the aforesaid, the Plaintiff has been damaged and he is entitled to compensatory damages in a sum to be determined at trial, punitive damages and attorney's fees pursuant to 42 U.S.C. §1988.

PLAINTIFFS' THIRD CAUSE OF ACTION PURSUANT TO
42 U.S.C. §1983 AND THE FOURTH AMENDMENT
AGAINST THE CITY OF NEW YORK,
i.e., MONELL CLAIM

57 Plaintiffs repeat the allegations of the previous paragraphs as though fully stated herein.

58 The Plaintiffs' rights have been violated under the Fourth Amendment to the United States Constitution as made applicable to the states via the Fourteenth Amendment by the

defendant, NYC.

59 Defendants NYC, Police Officers who were supervisors and final decision makers as a matter of policy and practice, have with deliberate indifference failed to properly train, discipline, sanction and retrain police officers, despite their knowledge of the recurring problem of officers beating civilians, particularly minority civilians, and covering up said beatings by bringing false charges to justify their acts of violence, and that there has been no meaningful attempt on the part of NYC to investigate or forestall further incidents.

60 The Defendant NYC intentionally operates an ineffective Civilian Complaint Review Board, which operates for the purpose of wrongfully exonerating and failing to substantiate legitimate claims against officers.

61 The Defendant NYC intentionally operates an ineffective Internal Affairs Department of the City's police department, which operates for the purpose of wrongfully exonerating and failing to substantiate legitimate claims against officers.

62 As a result of NYC's deliberate indifference to the ineffectiveness of the CCRB and IAB, the Defendants in the instant case felt free to, and did in fact, violate the plaintiffs' rights.

63 It is routine practice of NYPD officers to fail to act on their duty to intervene to protect civilians whose civil rights are being violated by other officers in their presence yet NYC does not discourage this behavior, resulting in civil rights violations including those which the Plaintiffs endured.

64 In the instant matter, due to the de facto policies of the NYPD, Plaintiffs' rights were violated.

65 Despite being often alerted to the recurring aforementioned problems, the NYPD has remained deliberately indifferent to said problems and in so doing encouraged its officers to persist in the aforesaid unconstitutional behavior.

66 The aforementioned unlawful customs and practices by subordinate officials of the NYPD are so manifest and widespread as to imply the constructive acquiescence of policymaking officials.

67 Due directly to the NYPD's aforementioned de facto policy of ignoring officers' violations of citizens' constitutional rights, the Plaintiffs were subjected to humiliation,

embarrassment, anxiety, they were prevented from conducting their normal affairs of business, they suffered physical and emotional harms, they were subjected to excessive and unreasonable force and false arrest, they were defamed in their community, and they were forced to appear in court.

68 As a consequence thereof, Mr. Carter and Mr. Derby have been damaged and they are entitled to compensatory damages in an amount to be determined by the trier of fact and that they are entitled to an award of attorney's fees pursuant to 42 U.S.C. §1988.

**FOURTH CLAIM FOR RELIEF ON BEHALF OF
PLAINTIFFS VIOLATION OF PLAINTIFFS' FOURTH, SIXTH
AND FOURTEENTH AMENDMENT RIGHTS
VIA DENIAL OF HIS RIGHT TO A FAIR TRIAL, i.e.,
DEPRIVATION OF LIBERTY WITHOUT DUE PROCESS**

69 Plaintiffs repeat the allegations contained in the prior paragraphs as if fully stated herein.

70 Plaintiff were denied their right to a fair trial i.e., they were subjected to a deprivation of liberty without due process by the individual Defendants who created false information and provided that information to the District Attorney.

71 The individual Defendants fabricated and forwarded to prosecutors information they knew to be false and said false information was almost certain to influence a jury's verdict, and in so plaintiffs were denied his right to a fair trial and they were thereby damaged.

72 The individual Defendants who knew of plaintiffs being denied their right to a fair trial and who failed to intervene to prevent their constitutional rights from being violated are liable to the plaintiffs as are the Defendants who directly participated in fabricating and providing the false information to the Office of the District Attorney.

73 By reason of the aforesaid, the plaintiffs have been damaged and are entitled to compensatory and punitive damages and an award of attorney's fees is appropriate pursuant to 42U.S.C. §1988.

WHEREFORE, Plaintiffs demand judgment against the Defendants for compensatory damages in a sum to be determined at trial, punitive damages on their first and second and fourth causes of action and attorney's fees pursuant to 42 U.S.C. §1988, together with costs and disbursements of this action; a trial by jury of all issues involved in this complaint; and such

other and further relief as this Court may deem just and proper under the circumstances.

Dated: April 17, 2015
New York, New York

/s /

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